

Uncured-Deficiency Dismissal Order

Cure period expired

The clerk received a petition tender on February 11, 2025 without the required copy of the January 13 Board order. A deficiency notice issued the same day and directed counsel to supply the complete order by February 18. The notice preserved the original receipt, identified no other defect, and warned that failure to cure could lead to dismissal for failure to prosecute. The docket shows no cure submission by the stated deadline or before entry of this order on February 19, 2025.

Because the missing attachment remains absent, the court cannot treat the tender as a conforming petition package. The defect is procedural and does not decide whether the February 11 receipt fell within the statutory period. Nor does the absence of the copy imply anything about CAT eligibility or the agency record. The seven calendar days expired at the end of Tuesday, February 18; this order follows on the first day after that period without treating the intervening federal holiday as an extension.

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Dismissal for failure to cure

The attempted petition is dismissed for failure to cure the missing-order defect and failure to prosecute the tender. The clerk shall serve this order on counsel and close further docket administration as of February 19, 2025. The dismissal is based on noncompliance with the deficiency notice, not on the merits of the Board order and not on an assessment of aggregate risk, official acquiescence, record completeness, or standard of review.

This order applies only where no cure was filed by February 18. A timely submission of the complete eight-page order, properly tied to the February 11 notice, would present different procedural facts and would prevent reliance on the uncured predicate stated here. The court does not decide any question arising from such a completed cure, and it does not treat an unrelated attachment or a later petition as satisfaction of the notice.